

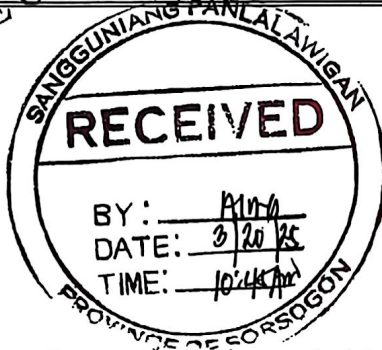


Republic of the Philippines
Province of Sorsogon
MUNICIPALITY OF PRIETO DIAZ
LGU TIN: 000794065
Official Email Add: sbprietodiaz@gmail.com



FILE COPY

Office of the Secretary to the Sangguniang Bayan

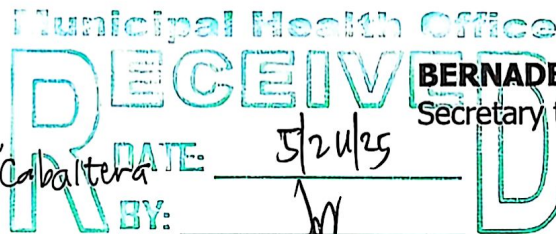


1st Endorsement
March 19, 2025

SB06 - 03/19/2025 - 117
OFFICE OF THE SANGGUNIANG BAYAN
LOCAL GOVERNMENT UNIT
Prieto Diaz, Sorsogon
RELEASED
BY: PINKY E. DESTURA
DATE: 3-19-25 TIME: 1:00 PM

Respectfully forwarded to the Honorable Sangguniang Panlalawigan of Sorsogon through **Hon. KRUNIMAR ANTONIO ESCUDERO II**, the herein attached Municipal Ordinance No. 2025-02 entitled: **"AN ORDINANCE PROVIDING GRIEVANCE MECHANISM FOR SENIOR CITIZENS AND PERSON WITH DISABILITIES (PWDs) IN THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON"** for its information, review and appropriate action.

Received by:
James Mark F. Caballero
Patrolman
MAY 26, 2025 / 11:42 AM

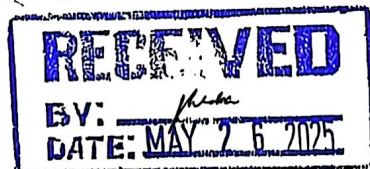


BERNADETTE R. ESPEÑA - YAO
Secretary to the Sangguniang Bayan

- Cc:
- Hon. Romeo D. Domasian
Municipal Mayor
 - Ms. Betty G. Arines
MSWDO
 - Ms. Evette Forbes
MLGOO
 - Dr. Jenifer Bernaldez
Municipal Health Officer
 - the OIC-COP Municipal Police Station

OFFICE OF THE MAYOR
LGU PRIETO DIAZ, SORSOGON
RECEIVED
By: _____
Date: 5/26/25
Time: 11:25 am

Dear _____
9-30-25



Page 1 of 1
5-26-2025



Republic of the Philippines
Province of Sorsogon
MUNICIPALITY OF PRIETO DIAZ
LGU TIN: 000794065
Official Email Add: sbprietodiaz@gmail.com



Office of the Sangguniang Bayan

EXCERPT FROM THE MINUTES OF THE REGULAR SESSION OF THE 11TH SANGGUNIANG BAYAN OF PRIETO DIAZ, SORSOGON HELD ON MARCH 10, 2025 AT THE BARANGAY HALL OF PERLAS, PRIETO DIAZ, SORSOGON

PRESENT:

Hon. Avon D. Domalaon, MPA	Municipal Vice Mayor/Presiding Officer
Hon. Jo Madel D. Domalaon	S. B. Member
Hon. Bienvenido D. Ayo, Jr.	-do-
Hon. Luis Lee E. Espeña, Jr.	-do-
Hon. Alice D. Emano	-do-
Hon. Juan D. Ebid	-do-
Hon. Albert D. Destura	-do-
Hon. Rene Joseph D. Domasian	SKMF Pres./S.B. Member

ABSENT:

Hon. Rodolfo E. Diolata	S. B. Member/ on leave
Hon. Joseph H. Yap, Jr.	-do-
Hon. Antonio J. Emano, Jr.	LnB Pres. /S. B. Member

ORDINANCE NO. 2025-02

Introduced by: Hon. Albert D. Destura

AN ORDINANCE PROVIDING GRIEVANCE MECHANISM FOR SENIOR CITIZENS AND PERSON WITH DISABILITIES (PWDs) IN THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON

WHEREAS, Article XV, Section 4 of the 1987 Philippine Constitution provides that the family has the duty to care for its elderly members but the State may also do so through just programs of social security;

WHEREAS, Republic Act No. 9994 or the Expanded Senior Citizens Act of 2010 which amended Republic Act No. 7432 recognizes senior citizens or elderly persons as integral members of society, deserving of utmost respect and full support and assistance from the government to ensure their overall health, safety, and well-being;

WHEREAS, Republic Act No. 7277 or the Magna Carta for Disabled Persons, as amended by Republic Act No. 9442, as further amended by Republic Act No. 10754, mandates the State to ensure the rehabilitation, self-development, and self-reliance of disabled persons and their integration into the mainstream of society;

WHEREAS, the same act also provides for the statutory benefits and privileges accorded to senior citizens and PWDs, including the grant of discounts, exemptions from value-added tax (VAT) on selected goods and services, free medical services in government health facilities, express lanes in commercial and government establishments, among others, as well as the legal consequences for violations thereof;

WHEREAS, local government units are also mandated to actively and fully implement national laws and policies, and to initiate programs and activities to ensure that the rights of senior citizens and PWDs are respected and protected in their respective jurisdictions;

WHEREAS, to this end, the Local Government of Prieto Diaz hereby formulates a policy against discrimination, abuse, abandonment, neglect, violence, and other acts detrimental to the well-being of the elderly and PWDs through enactment of the foregoing ordinance;

Be it ordained by the Sangguniang Bayan of Prieto Diaz, Sorsogon assembled that;

SECTION 1. TITLE

This Ordinance shall be known as an "*Ordinance Providing Grievance Mechanism for Senior Citizens and Person with Disabilities (PWDs) in the Municipality of Prieto Diaz.*"

SECTION 2. DECLARATION OF POLICY

It is hereby declared the policy of the municipality of Prieto Diaz to provide special protection to senior citizens, elderly persons, and PWDs from all forms of abuse consistent with the provisions of RA No. 9994, RA No. 7277, and other pertinent laws, through the establishment of institutional grievance mechanism.

SECTION 3. DEFINITION OF TERMS

For purposes of this Ordinance, the terms and phrases enumerated in this section shall be construed or interpreted to mean or refer to, as follows;

- a. Abandonment- the act of leaving or deserting elderly or PWD for a considerable period of time, without making proper arrangements for his/her health, safety, and welfare
- b. Abuse- refers to repeated acts or treatments to senior citizens or PWDs that tend to demean, debase or degrade their intrinsic value or dignity, including physical, emotional, psychological, or economic harm;
- c. Discrimination- treatment or consideration of, or making a distinction in favor of or against senior citizens or PWDs
- d. Domestic Violence- refers to acts or threats of violence against a senior citizen or PWD, excluding an act of self-defense, committed by any person or any relative within the 4th degree of affinity or consanguinity to the victim
- e. Negligence- the failure to observe for the protection of the interests of another person that required degree of care, precaution, and vigilance which the circumstances justly demand, whereby such other person suffers injury.
- f. Other Forms of Violence- refers to acts or threats of violence, excluding an act of self-defense, committed by any person other than those mentioned under Section 3 (d)

- g. Person with Disabilities (PWDs)- refer to persons who have long-term physical, mental, intellectual, or sensory impairments which may hinder their full and effective participation in society on an equal basis with others
- h. Violence- refers to a single or repeated act which causes harm or distress to a senior citizen or PWD
- i. Senior Citizens/ Elderly Persons- refer to a person who is at least sixty (60) years of age and above

SECTION 4. CREATION AND COMPOSITION OF THE MUNICIPAL COORDINATING AND MONITORING BOARD

The Municipal Coordinating and Monitoring Board is hereby created to be composed of the following:

Chairperson:

Municipal Social Welfare and Development Officer (MSWDO)

Vice Chairman:

Municipal Local Government Operations Officer (MLGOO)

Members:

1. President, Federation of Senior Citizens Association of the Prieto Diaz (FESCAP)
2. Business Processing and Licensing Officer (BPLO)
3. Head, Office of the Senior Citizens Affairs Office (OSCA)
4. Focal Person, Persons with Disability Affairs Office (PDAO)
5. Municipal Health Officer
6. President, Liga ng mga Barangay
7. All Barangay Senior Citizens Association (BASCA) Presidents
8. Women and Children Protections Desk Officer, Prieto Diaz Police Station
9. President, Association / Organization of Persons with Disability in the municipality
10. Representative from the Icare Hub

The OSCA Head and the PDAO Focal Person shall serve as focal persons for senior citizens and PWDs, respectively, whose duties are enumerated under Section 7 (b) hereof.

SECTION 5. FUNCTIONS OF THE BOARD. The Municipal Coordinating and Monitoring Board shall have the following functions:

1. Oversee and coordinate all projects and activities related to the welfare of elderly persons or senior citizens, and PWDs of the municipality of Prieto Diaz and take appropriate steps to ensure compliance with established priorities, standards and guidelines;
2. Ensure that every barangay has allocated at least one percent (1%) of their budget for programs/projects related to elderly persons or senior citizens, and PWDs pursuant to Department of Social Welfare and Development (DSWD) and Department of Budget and Management (DBM) Joint Circular No. 2003-01 or the Implementing Guidelines for Section 29 of the General Appropriations Act;
3. Collaborate with the Liga ng mga Barangay to dedicate a space in their Barangay Hall for the use of their elderly persons or senior citizens, and to establish Barangay Disability Affairs Office;
4. Coordinate with the Office of the Municipal Mayor to provide legal assistance to senior citizens and PWDs against persons or establishments who refuse to give lawful discounts on the purchase of goods and services and Value-Added Tax (VAT) exemption, among other privileges granted to them by law;
5. Monitor and coordinate with the Gender and Development (GAD) Focal Point System to ensure that gender equality programs and policies for women senior citizens and PWDs are properly and effectively implemented;
6. Lobby with the Sangguniang Bayan for the enactment of appropriate anti-poverty programs for senior citizens and PWDs;

7. Report to the Municipal Mayor any individual, establishments, business entities, institutions or agencies violating the provisions of RA No. 9994 and RA No. 7277, as amended by RA No. 9442, and other pertinent laws;

8. Assist senior citizens and PWDs in filing complaints or charges against any individual, establishments, business entities, institutions, or agencies who refuse to comply with the privileges under RA No. 9994 and RA No. 7277, as amended by RA 9442, and those who commit abuse, discrimination, neglect, abandonment, violence, and other similar acts before the Office of the Prosecutor and/or the Public Attorney's Office (PAC)) and in the appropriate court;

9. Ensure that all covered establishments display notices about the rights and privileges of senior citizens and PWD;

10. Perform such other functions that are necessary in the effective and successful enforcement of pertinent laws, rules, and ordinances related to senior citizens and PWDs.

SECTION 6. BOARD MEETING

The Board shall meet every quarter or as often as necessary when called upon by the Chairperson or a majority of its members. The members of the Board shall receive no compensation but shall be entitled to traveling and other allowances as approved by the Board, when funds are available.

SECTION 7. GRIEVANCE MECHANISM

A. The Board shall establish a grievance mechanism to address concerns and complaints from senior citizens and PWDs. This mechanism shall include:

1. A dedicated hotline, online platform and website for reporting grievances;
2. A clear procedure for filing and processing complaints, including confidentiality and protection from retaliation for complainants;
3. Regular reporting and monitoring of grievances and resolutions to the Board and the Municipal Mayor.

B. The focal persons of the Municipal Coordinating and Monitoring Board shall have the following duties:

1. Take initial steps in handling grievances of senior citizens and PWDs;
2. Take custody of and maintain all records, data information, and other pertinent documents filed before the Board and;
3. Coordinate with the Board to ensure that all complaints are logged, investigated, and resolved in a timely manner;
4. Other duties and responsibilities as may be authorized by the Board.

SECTION 8. MANUAL OF PROCEDURE

The Board is hereby authorized to formulate a Manual of Procedure for local operation to ensure the prompt and effective enforcement of RA No. 9994 and RA No. 7277, as amended by RA 9442, other pertinent laws and this ordinance.

SECTION 9. SEPARABILITY CLAUSE

If, for any reason, any provision of this ordinance or any part thereof shall be held unconstitutional and invalid, the other parts or provisions of this ordinance, which are not affected thereby, shall remain in full force and effect.

SECTION 10. REPEALING CLAUSE

Ordinances, rules and regulations or parts thereof, which are inconsistent or in conflict with the provisions of this ordinance, are hereby repealed or modified accordingly.

SECTION 11. EFFECTIVITY

This ordinance shall take effect immediately upon the completion of the posting requirement as provided for in the LGC of 1991.

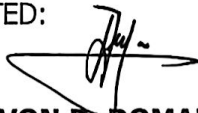
Let copies of this ordinance be forwarded to the Sangguniang Panlalawigan through Vice Governor Hon. Krunimar Antonio D. Escudero II, MDMG; copy furnished Hon. Romeo D. Domasian, Municipal Mayor; Ms. Betty G. Arines, MSWDO; Ms. Evette Forbes, Municipal Local Government Operations Officer (MLGOO); Dr. Jenifer Bernaldez, Municipal Health Officer; the OIC-COP Municipal Police Station; and all concerned for their information and appropriate action.

ENACTED: March 10, 2025

I HEREBY CERTIFY TO THE CORRECTNESS OF THE FOREGOING.


BERNADETTE R. ESPEÑA-YAO
Secretary to the Sangguniang Bayan

ATTESTED:


Hon. AVON D. DOMALAON, MPA
Municipal Vice Mayor/Presiding Officer

APPROVED:


Hon. ROMEO D. DOMASIAN, PhD
Municipal Mayor
Date approved: MAR 19 2025



Republic of the Philippines
PROVINCE OF SORSOGON
Sorsogon City



SANGGUNIANG PANLALAWIGAN

SP Building, Gov. Augusto G. Ortiz Drive corner Gov. Salvador C. Escudero, Sr. Drive,
Capitol Compound, Brgy. Burabod, East District, Sorsogon City

MAY 26 2025

May 14, 2025

TRANSMITTAL NO. 251-2025

TRANSMITTAL FOR: THE HONORABLE SANGGUNIANG BAYAN

Thru: Ms. BERNADETTE E. YAO

Secretary to the Sangguniang Bayan

LGU – Prieto Diaz, Sorsogon

Respectfully transmitting the herein resolutions approved by the 11th Provincial Board on **April 28, 2025 (144th Regular Session)** for your information and reference.

RESOLUTION NO. 193-2025 - RESOLUTION DECLARING VALID PRIETO DIAZ ORDINANCE NO. 2025-01, ENTITLED: "AN ORDINANCE INSTITUTIONALIZING A COMPREHENSIVE AND SUSTAINABLE REHABILITATION PROGRAM FOR PERSONS WITH DISABILITIES (PWDs) IN THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON."

RESOLUTION NO. 194-2025 - RESOLUTION DECLARING VALID PRIETO DIAZ ORDINANCE NO. 2025-02, ENTITLED: "AN ORDINANCE PROVIDING GRIEVANCE MECHANISM FOR SENIOR CITIZENS AND PERSON WITH DISABILITIES (PWDs) IN THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON."

Prepared by:



RHEA T. DIESTA

Local Legislative Staff Officer III

Noted:


ATTY. RODOLFO C. DEALCA, JR.

Secretary to the Sangguniang Panlalawigan

SBIC - 05262625 - 135

OFFICE of the SANGGUNIANG BAYAN LOCAL GOVERNMENT UNIT Prieto Diaz, Sorsogon
RECEIVED
BY:  SHAINA E. HUERTAS
DATE: 5/26/25 TIME: 8:28 AM



Republic of the Philippines
PROVINCE OF SORSOGON
Sorsogon City



SANGGUNIANG PANLALAWIGAN

*SP Building Gov. Augusto G. Ortiz Drive corner Gov. Salvador C. Escudero, Sr. Drive,
Capitol Compound, Brgy. Burabod, East District, Sorsogon City-4700*

EXCERPT FROM THE JOURNAL OF THE 144th **REGULAR SESSION OF THE 11TH PROVINCIAL BOARD ON APRIL 28, 2025** AT THE SP SESSION HALL, SANGGUNIANG PANLALAWIGAN BUILDING, GOV. AUGUSTO G. ORTIZ DRIVE COR. GOV. SALVADOR C. ESCUDERO, SR. DRIVE, CAPITOL COMPOUND, BRGY. BURABOD, EAST DISTRICT, SORSOGON CITY.

PRESENT:

Hon. Krunimar Antonio D. Escudero II, Vice Governor/Presiding Officer

1ST DISTRICT

Hon. John Ryan C. Dioneda
Hon. Maria “Nini” O. Ravanilla
Hon. Ralph Walter R. Lubiano*
Hon. Edmundo A. Atutubo
Hon. Rommel John C. Mella

2ND DISTRICT

Hon. Ramil M. Robles
Hon. Benito L. Doma
Hon. Roland R. Añonuevo
Hon. Eduardo E. Ong Jr.

EX-OFFICIO

Hon. Ramon B. Escudero – Provincial President, Philippine Councilors League
Hon. Jose Arturo D. Enano – Provincial President, Liga ng mga Barangay
Hon. Karl Marx H. Lozada – Provincial President, Sangguniang Kabataan Federation

*Absent

-oOo-

RESOLUTION NO. 194-2025

RESOLUTION DECLARING VALID PRIETO DIAZ ORDINANCE NO. 2025-02, ENTITLED: “AN ORDINANCE PROVIDING GRIEVANCE MECHANISM FOR SENIOR CITIZENS AND PERSON WITH DISABILITIES (PWDs) IN THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON.”

WHEREAS, submitted to the Sangguniang Panlalawigan of Sorsogon was Prieto Diaz Municipal Ordinance No. 2025-02 for review and appropriate action;

WHEREAS, the ordinance aims to provide special protection to senior citizens (SCs)/elderly persons, and persons with disabilities (PWDs) from all forms of abuse consistent with the provisions of RA No. 9994, RA No. 7277, and other pertinent laws, through the establishment of institutional grievance mechanism;

WHEREAS, to institutionalize a coordinated and responsive mechanism for the protection and promotion of the rights and welfare of SCs and PWDs, the Municipality of Prieto Diaz created a Municipal Coordinating and Monitoring Board. This body shall serve as the primary policy and oversight mechanism to ensure the effective implementation, monitoring, and enforcement of pertinent laws and programs, including Republic Act No. 9994 and Republic Act No. 7277, as amended. It shall also function as the central forum for grievance redress, policy coordination, and compliance monitoring at the barangay and municipal levels;

JS

WHEREAS, Prieto Diaz Municipal Ordinance No. 2025-01 is *intra vires*, pursuant to Republic Act No. 9994, or the “Expanded Senior Citizens Act of 2010,” which amended Republic Act No. 7432 and recognizes SCs as integral members of society, deserving of respect, full support, and government assistance to ensure their health, safety, and overall well-being. It is likewise enacted in accordance with Republic Act No. 7277, or the “Magna Carta for Disabled Persons,” as amended by Republic Act No. 9442 and further amended by Republic Act No. 10754, which mandates the State to ensure the rehabilitation, self-development, and self-reliance of PWDs, and their integration into the mainstream of society;

NOW, THEREFORE, on motion of Hon. Roland R. Añonuevo, duly seconded by Hon. Maria “Nini” O. Ravanilla the Board **RESOLVED**, as it is hereby **DONE**, to **DECLARE VALID PRIETO DIAZ ORDINANCE NO. 2025-02, ENTITLED: “AN ORDINANCE PROVIDING GRIEVANCE MECHANISM FOR SENIOR CITIZENS AND PERSON WITH DISABILITIES (PWDs) IN THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON.”**

LET COPIES of this resolution be furnished Mayor Romeo D. Domasian and the Sangguniang Bayan of Prieto Diaz, Sorsogon for their information and guidance.

APPROVED.

-oOo-

I HEREBY CERTIFY to the correctness of the foregoing.


ATTY. RODOLFO C. DEALCA, JR.
Secretary to the Sangguniang Panlalawigan

ATTESTED:


HON. KRENIMAR ANTONIO D. ESCUDERO II, MDMG
Vice Governor/Presiding Officer